Ref. Ares(2026)8344648 - 01/09/2026

EUROPEAN UNION AVIATION SAFETY AGENCY

Cologne, Germany

Subject: Digital Communications Services - EASA/2026/OP/0006

Dear Madam/Sir,

The European Union Aviation Safety Agency, referred to below as *the contracting authority*, is planning to award the contracts resulting from the above procurement procedure. The procurement documents consist of the contract notice, this invitation letter, the draft contract and tender specifications with their respective annexes. The documents are published in English[1].

All documents are available in the Funding & Tenders Portal (F&T Portal) at the following link[2]:

https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/opportunities/tender-details/0b2464f8-2d96-4e26-b1f4-5001cf101d3b-CN#anchorDocuments

Economic operators interested in this contract are invited to submit a tender in one of the official languages of the European Union, preferably in English.

1. Submission of tenders.

Tenders must be submitted exclusively via the electronic submission system (eSubmission) available from the above website[3]. Tenders submitted in any other way (e.g. e-mail or by letter) will be disregarded.

In order to submit a tender using eSubmission, economic operators (each member of the group in the case of a joint tender) will need to register in the European Commission's Participant Register an online register of organisations participating in EU calls for tenders or proposals. On registering each organisation obtains a Participant Identification Code (PIC, 9-digit number) which acts as its unique identifier in the above register. Instructions on how to create a PIC can be found on this page.

Economic operators already registered in the Participant Register shall reuse their existing PICs when preparing tenders in eSubmission.

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[1] That language version constitutes the sole authentic text and prevails over any other language versions that may be published on request of economic operators.

[2] Subscription to the call for tenders at the above link allows interested economic operators to receive e-mail notifications when new information or documents are published. Subscription is free of charge and does not involve any commitment to submit a tender.

[3] For detailed instructions on how to submit a tender please consult the eSubmission Quick Guide available at: https://webgate.ec.europa.eu/fpfis/wikis/x/5QEkh (access requires EU login account).
The supported browsers, file types, size of attachments and other system requirements can be consulted at: https://webgate.ec.europa.eu/fpfis/wikis/x/gwEkh. In case of technical problems, please contact the eSubmission Helpdesk (see contact details in the eSubmission Quick Guide) as soon as possible.

The time-limit for receipt of tenders is indicated under Section 5.1.12 of the contract notice where the time zone indicated is the local time at the contracting authority's location (as indicated in Section 8 of the contract notice). The time-limit is published also at the above F&T Portal link (subscribed users receive notifications when the call for tenders' data is modified).

A tender received after this time-limit for receipt of tenders will be rejected. The submission receipt provided by eSubmission with the official date and time of receipt of the submission (timestamp) constitutes proof of compliance with the time-limit for receipt of tenders[4].

Please note that it is <u>not</u> possible to submit a tender through eSubmission after the time-limit for receipt of tenders indicated in the contract notice and/or the F&T Portal. To ensure tenders are submitted on time, tenderers are invited to get familiar with the system and the system requirements, in particular the accepted file formats[5], well in advance.

Tenderers must ensure that their submitted tenders contain all the information and documents required by the contracting authority at the time of submission as set out in the procurement documents.

After submitting a tender, but before the deadline for receipt of tenders, a tenderer may definitively withdraw its tender[6], or replace it with a new one[7].

No more than one tender can be considered per tenderer[8]. If the same tenderer submits more than one tender, neither of which has been withdrawn as described above, only the latest tender will be considered. The tenderer may not refer to earlier submitted tenders to complement, clarify or correct its latest tender.

All costs incurred for the preparation and submission of tenders as well as for attending the opening session are to be borne by the tenderers and will not be reimbursed.

2. Legal effects of the invitation to tender and submission of a tender.

This invitation to tender is in no way binding on the contracting authority. The contracting authority's contractual obligation commences only when the contract with the successful tenderer is signed by both parties.

Up to the point of signature of the contract, the contracting authority may cancel the procurement procedure without tenderers being entitled to claim any compensation. Any such decision must be substantiated and the tenderers notified.

The validity period of the tender, during which tenderers may not modify the terms of their tenders in any respect, is indicated under Section 5.1.12 of the contract notice.

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[4] If no submission receipt is received in reasonable time after submission, please contact the eSubmission Helpdesk (see contact details in the above referred eSubmission Quick Guide) as soon as possible.

[5] See note 3.

[6] A submitted tender can be withdrawn directly in the "Procurement centre/Submissions" area in the F&T Portal. A withdrawal receipt will be provided by eSubmission as proof of withdrawal. For detailed instructions on how to withdraw a tender please consult the above referred eSubmission Quick Guide.

[7] To submit a new version, the tenderer must create a new tender in eSubmission and include all the information and documents required in the procurement documents with the submission of a tender, even if some of them have already been included in the replaced tender.

[8] Except where the tender specifications allow variants.

Submission of a tender implies acceptance of all the terms and conditions set out in the procurement documents and, where appropriate, waiver of the tenderer's own general or specific terms and conditions. The submitted tender is binding on the tenderer to whom the contract is awarded for the duration of the contract.

3. Contacts during the procurement procedure.

Contacts between the contracting authority and tenderers are prohibited throughout the procedure save in exceptional circumstances and under the following conditions only:

3.1 Submission phase (before the time-limit for receipt of tenders)

Upon request, the contracting authority may provide additional information solely for the purpose of clarifying the procurement documents.

Any request for additional information must be made in writing only, through the above F&T Portal link and clicking "Create a question" in the "Questions & answers" section.

The contracting authority is not bound to reply to requests for additional information received less than six working[9] days before the time-limit for receipt of tenders.

The contracting authority may, on its own initiative, inform interested parties of any error, inaccuracy, omission or any other type of clerical error in the text of the procurement documents.

Any additional information will be published at the above F&T Portal link. It is the economic operator's responsibility to check for updates and modifications during the submission period[10].

3.2 Opening of tenders

Tenders will be opened on the date, time and place indicated under Section 5.1.12 of the contract notice. A maximum of two representatives per tender may attend the opening session.

For organisational and security reasons the tenderer must provide the full name, date of birth, nationality and ID or passport number of their representative(s)[11] at least two working days in advance to: tenders@easa.europa.eu. The representatives will be required to present the submission receipt generated by eSubmission and to sign an attendance sheet.

The contracting authority reserves the right to refuse access to its premises if the above information or documents are not provided as required.

The public part of the opening session will be strictly limited to the following aspects:

- verification that each tender has been submitted in accordance with the submission requirements of the call for tenders;

- announcement of the tenders received: the names of the tenderers (all members in the case of a joint tender) will be announced.

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[9] Working days counted based on the contracting authority's location indicated under Section 8 of the contract notice.

[10] See note 2.

[11] This data is necessary to ensure access to the contracting authority's buildings. Details concerning the processing of personal data for visitors are available in the privacy statement at: https://commission.europa.eu/document/3b29aed9-da51-4a54-be05-c7fdd6a6eb2e_en.

Tenderers not present at the opening session may send an information request to tenders@easa.europa.eu if they wish to be provided with the information announced during the public opening.

Once the contracting authority has opened the tenders, they shall become its property and will be treated confidentially.

3.3 Evaluation phase (after the opening of tenders)

Except in duly justified cases, tenderers who have failed to submit evidence or to make statements as required in the procurement documents, shall be contacted by the contracting authority to provide the missing information or clarify supporting documents.

The contracting authority may correct obvious clerical errors in the tender after confirmation of the correction by the tenderer.

Such information, clarification or confirmation shall not substantially change the tender.

Please note that the total size of any e-mail sent to EASA including all attachments must not exceed 10 MB. Tenderers are advised to split larger attachments and send more than one e-mail.

3.4 Award phase

Tenderers will be notified of the outcome of this procurement procedure by e-mail.

The notification will be sent to the e-mail address provided by the tenderer (group leader in case of a joint tender) in the eSubmission application (section Contact Person) when the tender was submitted.

The same e-mail address will be used by the contracting authority for all other communications with the tenderer. It is the tenderer's responsibility to provide a valid e-mail address and to check it regularly.

4. Data protection.

If processing a reply to the invitation to tender involves the recording and processing of personal data (such as name, address and CV), such data will be processed pursuant to Regulation (EU) 2018/1725[12] of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC. Unless indicated otherwise, any personal data will be processed solely for evaluation purposes under the call for tenders by the European Union Aviation Safety Agency (EASA) acting as data controller. Details concerning the processing of personal data are available in the privacy statement at: https://www.easa.europa.eu/en/data-protection/procurement-and-contracts-including-call-expression-interest

If you would like to exercise your rights under Regulation (EU) 2018/1725, or if you have comments, questions or concerns, or if you would like to submit a complaint regarding the

[12] OJ L 295, 21.11.2018, p. 39

collection and use of your personal data, you can contact the data controller at tenders@easa.europa.eu by explicitly specifying your request.

The tenderer's personal data may be registered in the Early Detection and Exclusion System (EDES) if the tenderer is in one of the situations mentioned in Article 138 of the Financial Regulation[13].
For more information, see the privacy statement:
https://commission.europa.eu/funding-tenders/procedures-guidelines-tenders/data-protection-public-procurement-procedures_en

Yours faithfully,

Florian Guillermet
(e-signed)

Annexes to the invitation to tender:

- Annex I – Tender specifications and annexes
- Annex II – Draft contract, annexes and appendices

[13] Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast) (OJ L, 2024/2509, 26.9.2024, ELI: http://data.europa.eu/eli/reg/2024/2509/oj).

Electronically signed on 31/08/2026 11:44 (UTC+02) in accordance with Article 11 of Commission Decision (EU) 2021/2121